

**CV-24-008419 GUTIERREZ, ROBERTO vs NINO, ARTURO – Plaintiff’s  
Roberto and Bertha Gutierrez’s Motion for Summary Judgment or in the  
Alternative for Summary Adjudication – GRANTED in part and DENIED in  
part.**

County: Stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: For the reasons set forth below, Plaintiffs’ unopposed motion for summary judgment is DENIED, and Plaintiffs’ unopposed motion for summary adjudication is GRANTED in part and DENIED in part. Plaintiffs to submit a new proposed order within 10 court days consistent with this ruling. Request for Judicial Notice Pursuant to Evidence Code section 452, subdivision (d), Plaintiff requests judicial notice of (1) the original complaint filed on October 22, 2024, (2) Defendant’s Answer filed on March 17, 2025, (3) the Declaration of Mark J. Condon filed September 17, 2025 in support of Plaintiffs’ Motion to Deem the Truth of Matters and Genuineness of Documents Specified in Requests for Admission, Set One, Admitted and Conclusively Established, and (4) the Court’s Order dated October 24, 2025 deeming the truth of matters and genuineness of documents specified in Requests for Admission, Set One, admitted and conclusively established. It is unnecessary for the Court to take judicial notice of filings in the instant case. (See *Bienville Water Supply Co. v. City of Mobile* (1902) 186 U.S. 212, 217.) The request for judicial notice is DENIED as moot. Governing Law A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . . .” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one sufficient to support the position of the party in question.” (*Id.* at p. 851.) A plaintiff meets their burden “of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action.” (Code Civ. Proc., § 437c(p)(1).) Once the plaintiff satisfies that burden, the burden shifts to the defendant, who must show “that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (*Ibid.*) “Because of the drastic nature of the summary judgment procedure and the importance of safeguarding the adverse party’s right to a trial, the moving party must make a strong showing. His affidavits are strictly construed and the opposing party’s are liberally construed.” (*Garcia v. World Savings, FSB* (2010) 183 Cal.App.4th 1031, 1038.) All doubts as to whether any material, triable issues of fact exist are to be resolved in favor of the party opposing summary judgment or adjudication. (*Barber v. Marina Sailing, Inc.* (1995) 36 Cal.App.4th 558, 562.) Thus, evidence that is equivocal or from which conflicting inferences may be drawn is insufficient to meet the movant’s burden. (*Anderson v. Metalclad Insulation Corp.* (1999) 72 Cal.App.4th 284, 297.) In addition to moving for summary judgment, “[a] party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs.” (Code Civ. Proc., § 437c(f)(1).) A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c(f)(2).) Background On or about January 16, 2001, the parties entered into a written purchase agreement for the property located at 608 Benson Avenue, Modesto, California, APN 035-42-03 (the “Property”). The transaction was financed by an All Inclusive Purchase Money Promissory Note secured by an All Inclusive Purchase Money Deed of Trust recorded in Stanislaus County as Document No. 2001-004026. Prior to the parties purchase agreement, an underlying promissory note was secured by a deed of trust recorded May 20, 1997 as Document No. 1997-038472. Under the All-Inclusive Purchase Money Promissory Note, Defendant, as payee, covenanted and agreed to pay all installments of principal and interest that became due under the underlying note as those sums became due and payable. The original amount of the underlying promissory note was \$81,000.00. Plaintiffs fully performed all obligations under the purchase agreement, the Note, and the All-Inclusive Deed of Trust. On May 28, 2004, Defendant received a payment from Fidelity National Title in the amount of \$98,930.77. After receiving the payoff, Defendant failed to remit funds to the then-beneficiary of the 1997 deed of trust, failed to execute a reconveyance of the All Inclusive Deed of Trust, and appears to have personally retained the majority of the payoff funds. On April 3, 2024, a Notice of Default was recorded and a Notice of Trustee’s Sale was recorded on July 5, 2024 against the Property on the underlying deed of trust. To protect the Property, Plaintiffs made a payment in the amount of \$45,729.51 toward the underlying note. Subsequently, Plaintiffs made an additional payment in the amount of \$20,542.58 to reinstate after a second notice of default and notice of trustee’s sale were recorded on or about June 20, 2025. Procedural History On October 22, 2024, Plaintiffs filed the operative complaint alleging the following causes of action: specific performance, breach of written contract, and declaratory relief. On June 12, 2025, Plaintiffs moved for an order deeming the truth of matters

specified and the genuineness of the documents specified in its Requests for Admissions, Set One, admitted. On October 24, 2025, the Court granted Plaintiff's motion. Specific performance " 'Specific performance of a contract may be decreed whenever: (1) its terms are sufficiently definite; (2) consideration is adequate; (3) there is substantial similarity of the requested performance to the contractual terms; (4) there is mutuality of remedies; and (5) plaintiff's legal remedy is inadequate. [Citations.]' [Citation.]" (Union Oil Co. of California v. Greka Energy Corp. (2008) 165 Cal.App.4th 129, 134.) Plaintiffs have met their prima facie burden of showing there is no triable issue of material fact as to specific performance based on the terms of the agreements at issue, consideration paid to Defendant, the requested performance being similar to the contractual terms, mutuality of remedies, and the inadequacy of damages to clear the title. Because Defendant did not file an opposition, there is no contrary evidence raising a triable issue of material fact. The agreements at issue require Defendant to satisfy the underlying note and deed of trust obligations and to execute the necessary reconveyance documents. The Court finds that Plaintiffs are entitled to specific performance of the Defendant's remaining obligations under the said agreements. Plaintiffs have already made substantial payments towards the underlying note, but it appears there may be an outstanding balance. Accordingly, summary adjudication is GRANTED on the cause of action for specific performance. Defendant shall pay off any outstanding amount due under the underlying note and shall execute and record the appropriate reconveyance documents. Breach of contract A breach of contract claim "requires a showing of '(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.' [Citations.]" (D'Arrigo Bros. of California v. United Farmworkers of America (2014) 224 Cal.App.4th 790, 800 [emphasis added].) Plaintiffs have met their prima facie burden of showing that there is no triable issue of fact as to breach of contract based on the agreements at issue, Plaintiffs' payment to Defendant in the amount of \$98,930.77, Defendant's failure to remit the payoff funds to the beneficiary of the underlying May 20, 1997 note and deed of trust and failure to execute the associated reconveyance documents, and Plaintiffs' payments towards the underlying note and associated interest and fees in the amount of \$66,272.09. Defendant breached the contract and Plaintiffs were harmed as a result. Because Defendant did not file an opposition, there is no contrary evidence raising a triable issue of material fact. Accordingly, summary adjudication is GRANTED on the cause of action for breach of contract. Plaintiff is entitled to damages in the amount of \$66,272.09. Declaratory relief "Any person interested under a written instrument . . . or under a contract, or who desires a declaration of his or her rights or duties with respect to another, . . . may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties . . . ." (Code Civ. Proc., § 1060.) "The court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances." (Code Civ. Proc., § 1061.) A party is not entitled to declaratory relief simply because it proved its underlying claims. (Artus v. Gramercy Towers Condominium Assn. (2018) 19 Cal.App.5th 923, 930.) "[D]eclaratory relief is an equitable remedy and need not be awarded if the circumstances do not warrant." (Ibid.) "The propriety of a trial court's denial of declaratory relief involves a two-prong inquiry. The first prong concerns whether 'a probable future dispute over legal rights between parties is sufficiently ripe to represent an 'actual controversy' within the meaning of the statute authorizing declaratory relief (Code Civ. Proc., § 1060), as opposed to purely hypothetical concerns.' (Steinberg v. Chiang (2014) 223 Cal.App.4th 338, 343, 167 Cal.Rptr.3d 249.)" (Artus, supra, 19 Cal.App.5th at 930–931.) "The second prong concerns '[w]hether such [an] actual controversy merits declaratory relief as necessary and proper (Code Civ. Proc., § 1061).' [Citations.]" (Artus, supra, 19 Cal.App.5th at 930–931.) The separate statement must identify "[e]ach supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion." (Cal. Rules of Court, rule 3.1350.) Plaintiffs have failed to meet their prima facie burden of showing that there is no triable issue of fact as an actual, present controversy between the parties regarding the requested declaratory relief. Plaintiffs seek a declaration that they owe Defendant no further sums relating to the purchase transaction of the Property, that Plaintiffs' obligations secured by the All Inclusive Purchase Money Deed of Trust have been fully satisfied, and that Defendant retains no enforceable interest in the Property. Nothing in Plaintiffs' separate statement (or memorandum) demonstrates the existence of an actual controversy as to whether Plaintiffs' performed or whether Defendant retains any interest in the Property. Accordingly, summary adjudication is DENIED on the cause of action for declaratory relief.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 6ed1110b220be639031dbf1911399aa1b3d9f5e99147c0bfa83a9bf1f48a4dd0

CV-24-008419 – GUTIERREZ, ROBERTO vs NINO, ARTURO – Plaintiff's Roberto and Bertha Gutierrez's Motion for Summary Judgment or in the Alternative for Summary Adjudication – GRANTED in part and DENIED in part.

For the reasons set forth below, Plaintiffs' unopposed motion for summary judgment is DENIED, and Plaintiffs' unopposed motion for summary adjudication is GRANTED in part and DENIED in part. Plaintiffs to submit a new proposed order within 10 court days consistent with this ruling.

## Request for Judicial Notice

Pursuant to Evidence Code section 452, subdivision (d), Plaintiff requests judicial notice of (1) the original complaint filed on October 22, 2024, (2) Defendant's Answer filed on March 17, 2025, (3) the Declaration of Mark J. Condon filed September 17, 2025 in support of Plaintiffs' Motion to Deem the Truth of Matters and Genuineness of Documents Specified in Requests for Admission, Set One, Admitted and Conclusively Established, and (4) the Court's Order dated October 24, 2025 deeming the truth of matters and genuineness of documents specified in Requests for Admission, Set One, admitted and conclusively established.

It is unnecessary for the Court to take judicial notice of filings in the instant case. (See *Bienville Water Supply Co. v. City of Mobile* (1902) 186 U.S. 212, 217.) The request for judicial notice is DENIED as moot.

## Governing Law

A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . . ." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one sufficient to support the position of the party in question." (*Id.* at p. 851.) A plaintiff meets their burden "of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action." (Code Civ. Proc., § 437c(p)(1).) Once the plaintiff satisfies that burden, the burden shifts to the defendant, who must show "that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (*Ibid.*)

"Because of the drastic nature of the summary judgment procedure and the importance of safeguarding the adverse party's right to a trial, the moving party must make a strong showing. His affidavits are strictly construed and the opposing party's are liberally construed." (*Garcia v. World Savings, FSB* (2010) 183 Cal.App.4th 1031, 1038.) All doubts as to whether any material, triable issues of fact exist are to be resolved in favor of the party opposing summary judgment or adjudication. (*Barber v. Marina Sailing, Inc.* (1995) 36 Cal.App.4th 558, 562.) Thus, evidence that is equivocal or from which conflicting inferences may be drawn is insufficient to meet the movant's burden. (*Anderson v. Metalclad Insulation Corp.* (1999) 72 Cal.App.4th 284, 297.)

In addition to moving for summary judgment, "[a] party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs." (Code Civ. Proc., § 437c(f)(1).) A motion for summary adjudication proceeds in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c(f)(2).)

## Background

On or about January 16, 2001, the parties entered into a written purchase agreement for the property located at 608 Benson Avenue, Modesto, California, APN 035-42-03 (the "Property"). The transaction was financed by an All Inclusive Purchase Money Promissory Note secured by an All Inclusive Purchase Money Deed of Trust recorded in Stanislaus County as Document No. 2001-004026.

Prior to the parties purchase agreement, an underlying promissory note was secured by a deed of trust recorded May 20, 1997 as Document No. 1997-038472. Under the All-Inclusive Purchase Money Promissory Note, Defendant, as payee, covenanted and agreed to pay all installments of principal and interest that became due under the underlying note as those sums became due and payable. The original amount of the underlying promissory note was \$81,000.00.

Plaintiffs fully performed all obligations under the purchase agreement, the Note, and the All-Inclusive Deed of Trust. On May 28, 2004, Defendant received a payment from Fidelity National Title in the amount of \$98,930.77.

After receiving the payoff, Defendant failed to remit funds to the then-beneficiary of the 1997 deed of trust, failed to execute a reconveyance of the All Inclusive Deed of Trust, and appears to have personally retained the majority of the payoff funds.

On April 3, 2024, a Notice of Default was recorded and a Notice of Trustee's Sale was recorded on July 5, 2024 against the Property on the underlying deed of trust. To protect the Property, Plaintiffs made a payment in the amount of \$45,729.51 toward the underlying note. Subsequently, Plaintiffs made an additional payment in the amount of \$20,542.58 to reinstate after a second notice of default and notice of trustee's sale were recorded on or about June 20, 2025.

#### Procedural History

On October 22, 2024, Plaintiffs filed the operative complaint alleging the following causes of action: specific performance, breach of written contract, and declaratory relief. On June 12, 2025, Plaintiffs moved for an order deeming the truth of matters specified and the genuineness of the documents specified in its Requests for Admissions, Set One, admitted. On October 24, 2025, the Court granted Plaintiff's motion.

#### Specific performance

" 'Specific performance of a contract may be decreed whenever: (1) its terms are sufficiently definite; (2) consideration is adequate; (3) there is substantial similarity of the requested performance to the contractual terms; (4) there is mutuality of remedies; and (5) plaintiff's legal remedy is inadequate. [Citations.]' [Citation.]" (Union Oil Co. of California v. Greka Energy Corp. (2008) 165 Cal.App.4th 129, 134.)

Plaintiffs have met their prima facie burden of showing there is no triable issue of material fact as to specific performance based on the terms of the agreements at issue, consideration paid to Defendant, the requested performance being similar to the contractual terms, mutuality of remedies, and the inadequacy of damages to clear the title. Because Defendant did not file an opposition, there is no contrary evidence raising a triable issue of material fact.

The agreements at issue require Defendant to satisfy the underlying note and deed of trust obligations and to execute the necessary reconveyance documents. The Court finds that Plaintiffs are entitled to specific performance of the Defendant's remaining obligations under the said agreements. Plaintiffs have already made substantial payments towards the underlying note, but it appears there may be an outstanding balance.

Accordingly, summary adjudication is GRANTED on the cause of action for specific performance. Defendant shall pay off any outstanding amount due under the underlying note and shall execute and record the appropriate reconveyance documents.

#### Breach of contract

A breach of contract claim "requires a showing of '(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.' [Citations.]" (D'Arrigo Bros. of California v. United Farmworkers of America (2014) 224 Cal.App.4th 790, 800 [emphasis added].)

Plaintiffs have met their prima facie burden of showing that there is no triable issue of fact as to breach of contract based on the agreements at issue, Plaintiffs' payment to Defendant in the amount of \$98,930.77, Defendant's failure to remit the payoff funds to the beneficiary of the underlying May 20, 1997 note and deed of trust and failure to execute the associated reconveyance documents, and Plaintiffs' payments towards the underlying note and associated interest and fees in the

amount of \$66,272.09. Defendant breached the contract and Plaintiffs were harmed as a result. Because Defendant did not file an opposition, there is no contrary evidence raising a triable issue of material fact.

Accordingly, summary adjudication is GRANTED on the cause of action for breach of contract. Plaintiff is entitled to damages in the amount of \$66,272.09.

#### Declaratory relief

"Any person interested under a written instrument . . . or under a contract, or who desires a declaration of his or her rights or duties with respect to another, . . . may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties . . . ." (Code Civ. Proc., § 1060.) "The court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances." (Code Civ. Proc., § 1061.)

A party is not entitled to declaratory relief simply because it proved its underlying claims. (*Artus v. Gramercy Towers Condominium Assn.* (2018) 19 Cal.App.5th 923, 930.) "[D]eclaratory relief is an equitable remedy and need not be awarded if the circumstances do not warrant." (*Ibid.*) "The propriety of a trial court's denial of declaratory relief involves a two-prong inquiry. The first prong concerns whether 'a probable future dispute over legal rights between parties is sufficiently ripe to represent an 'actual controversy' within the meaning of the statute authorizing declaratory relief (Code Civ. Proc., § 1060), as opposed to purely hypothetical concerns.'" (*Steinberg v. Chiang* (2014) 223 Cal.App.4th 338, 343, 167 Cal.Rptr.3d 249.)" (*Artus*, *supra*, 19 Cal.App.5th at 930–931.) "The second prong concerns '[w]hether such [an] actual controversy merits declaratory relief as necessary and proper (Code Civ. Proc., § 1061).' [Citations.]" (*Artus*, *supra*, 19 Cal.App.5th at 930–931.)

The separate statement must identify "[e]ach supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion." (Cal. Rules of Court, rule 3.1350.)

Plaintiffs have failed to meet their prima facie burden of showing that there is no triable issue of fact as an actual, present controversy between the parties regarding the requested declaratory relief. Plaintiffs seek a declaration that they owe Defendant no further sums relating to the purchase transaction of the Property, that Plaintiffs' obligations secured by the All Inclusive Purchase Money Deed of Trust have been fully satisfied, and that Defendant retains no enforceable interest in the Property. Nothing in Plaintiffs' separate statement (or memorandum) demonstrates the existence of an actual controversy as to whether Plaintiffs' performed or whether Defendant retains any interest in the Property.

Accordingly, summary adjudication is DENIED on the cause of action for declaratory relief.